

There is no evidence in the court's file of proof of service of the motion filed August 20, 2026. Based on the failure to demonstrate proper and timely service, the motion is denied without prejudice.

5. S-CV-0051883 Victoria Figone v. Moana Beach Prop. Owners Assn.

Defendants' motion for a limited reopening of expert discovery

Appearance of the parties is required on **September 15, 2026 at 8:30 a.m. in Department 32.**

6. S-CV-0053973 Holt of Cal. v. Viking Forebay Holdings

Plaintiff's motion for summary adjudication is continued to **October 27, 2026 at 8:30 a.m. in Department 32.** The court apologizes to the parties for any inconvenience. No further briefing is permitted.

7. S-CV-0054205 Keller Supply Co. v. Five Star Custom Pools

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima.

Moving party is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Attorneys' Fees

Defendant and cross-complainant Merchants Bonding Company ("Merchants") moves for an award of attorneys' fees in the amount of \$10,000 from the amount previously deposited with the court by way of interpleader action pursuant to Code of Civil Procedure section 386.6(a). No opposition has been filed.

Merchants filed a motion to deposit and discharge surety pursuant to Code of Civil Procedure section 386, which the court granted on March 17, 2026. The court has discretion to award reasonable attorneys' fees and costs "from the amount in dispute which has been deposited with the court." (Code Civ. Proc., § 386.6, subd. (a).) A review of the court file reveals Merchants deposited \$25,000 on or about June 1, 2026. The court exercises its discretion to award attorneys' fees and costs to Merchants.

As to the hourly rate and hours incurred, Merchants submits evidence it incurred 37.8 hours at a rate of \$240 per hour and costs of \$1,145.20. (Decl. Sarfati and Exh. B thereto.) Merchants did not submit any billing statements. Although a party is not required to provide billing statements to support its request for attorneys' fees, the party must provide sufficiently detailed information to permit the court to assess whether the number of hours worked on each task was reasonable. The declaration of counsel